

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1196

Introduced by Storer, 43; Sanders, 45; Storm, 23; Strommen, 47.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to postsecondary education; to prohibit the
- 2 use of state or local funds for low-earning outcome programs as
- 3 prescribed; to provide powers and duties for the Coordinating
- 4 Commission for Postsecondary Education; and to require an annual
- 5 report.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) No state or local funds shall be allocated or
2 expended, either directly or indirectly, for any low-earning outcome
3 program as determined pursuant to 20 U.S.C. 1087d. This prohibition shall
4 include, but not be limited to, the following categories of postsecondary
5 education funding:

- 6 (a) Individual student financial aid;
7 (b) Base operational or instructional funding;
8 (c) Separately or specially appropriated aid or grants; and
9 (d) Capital or facilities funding.

10 (2) The Nebraska Coordinating Commission for Postsecondary Education
11 shall:

12 (a) Annually review updated federal determinations of low-earning
13 outcome programs; and

14 (b) Electronically submit an annual report to the Clerk of the
15 Legislature documenting:

16 (i) The federal determinations of low-earning outcome programs;

17 (ii) Enforcement of the provisions of subsection (1) of this
18 section; and

19 (iii) The estimated fiscal impact resulting from the provisions of
20 subsection (1) of this section.

21 (3) The Coordinating Commission for Postsecondary Education may
22 adopt and promulgate rules and regulations to carry out the purposes of
23 this section.